

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 22-32

DOKA U.S.A LTD.

VS.

MSC MEDITERRANEAN SHIPPING COMPANY (USA)
INC.

JOINT STATUS REPORT

Pursuant to the Administrative Law Judge’s Initial Order of December 6, 2022 (FMC Dkt. # 4), Complainant DOKA U.S.A LTD (“DOKA” or “Complainant”) and Respondent MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC. (“MSC USA” or “Respondent”) (jointly the “Parties”) hereby submit their joint status report.

Consumer Affairs and Dispute Resolution Services

The parties have contacted the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) in order to set the preliminary conference to discuss if the matter may be resolved through mediation and are awaiting confirmation from CADRS as to a convenient date for the preliminary conference.

In any event, the parties are weighing whether mediation with CADRS would be helpful in resolving this dispute.

Initial Disclosures

Complainant DOKA has served its Initial Disclosures.

Respondent MSC (USA) has served its initial disclosures.

Proposed Scheduling Order

The Parties propose the following Scheduling Order:

- January 20, 2023 - Initial Discovery Requests Due
- February 20, 2023 - Responses to Initial Discovery Due
- February 27, 2023 - Depositions Begin
- April 17, 2023 - Deadline for Submission of Discovery Requests
- April 28, 2023 - Joint Status Report
- May 12, 2023 - Parties Complete Depositions
- May 18, 2023 - Close of Discovery
- June 18, 2023 - Complainant's Brief, Proposed Findings of Fact, and Appendix
- July 19, 2023 - Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact and Appendix
- August 2, 2023 - Complainant's Reply Brief and Responses to Proposed Findings of Fact

Respectfully submitted,

/s/ Mary E. Reeves,
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Dated: January 3, 2023

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 3rd day of January 2023, the foregoing Joint Status Report was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge Linda S. Harris Crovella
judges@fmc.gov

/s/Kaspar Kielland